



# Housing Preservation & Development

[Search](#)

## Tenants' Rights and Responsibilities

## Tenants' Rights and Responsibilities

In New York City, tenants have many rights relating to the safety and quality of their housing. Tenants should expect to live in safe, well-maintained buildings that are free from vermin, leaks, and hazardous conditions. Laws protect tenants from harassment and discrimination. Tenants have responsibilities to their building owners and other tenants - including not damaging the building, and responding to annual owner inquiries related to window guards, lead-based paint, and to maintain smoke and carbon monoxide detectors. For more information on tenants' rights, please see the Tenant Bill of Rights.

Free legal advice and counsel is available for New York City residential renters. To access these services, please call 311 and ask for the "Tenant Helpline", visit the Mayor's Office to Protect Tenants webpage, or visit the Contact Us form.

## New Tenant Protection Laws

Changes to New York State rent laws, recently passed by lawmakers in Albany, make it harder for landlords to evict any tenant. In addition, the new rent laws strengthened protections for New Yorkers living in rent-controlled or rent-stabilized apartments. These laws are enforced by the New York State Division of Housing and Community Renewal (DHCR). DHCR is the State's affordable housing agency, with a mission to build, preserve, and protect affordable housing and increase home ownership throughout New York State.

As of June 14, 2019, there are new laws protecting tenants in New York State. The new rent laws are permanent unless the legislature amends, repeals, or terminates them. Learn more about the new tenant protection laws from the Mayor's Office to Protect Tenants.

## Good Cause Eviction

Good Cause Eviction is a New York State law that went into effect on April 20, 2024. It gives some tenants of unregulated (also known as “market rate”) homes in New York City new protections. Landlords of homes covered by the new Good Cause Eviction requirements cannot end a tenancy without a “good cause” reason and tenants can use this law as a defense in Housing Court. Tenants can also use the law to challenge rent increases above a certain level if they are evicted for nonpayment of rent. The law applies to eviction cases started on or after April 20, 2024, meaning cases where the landlord first filed documents in court to begin the case on or after this date. Read more about Good Cause Eviction [here](#).

## The ABCs of Housing

The ABCs of Housing is HPD's guide to housing rules and regulations for owners and tenants.

Owners and tenants have legal responsibilities to each other. HPD is one of many city and state agencies that enforce those responsibilities. This booklet is designed to help owners and tenants gain an understanding of the rules and regulations affecting housing, and to provide information about how to receive assistance.

Inside the guide you will find information about owners' and tenants' rights and responsibilities, staying in your apartment safely, resources for new affordable housing or rental assistance, and useful contact information for other housing related issues.

## Immigrant Rights in Housing

Immigrant New Yorkers have the same rights and responsibilities in housing as all other tenants, regardless of documentation status. Landlords cannot treat tenants differently because of their immigration or citizenship status or national origin, including by refusing to do repairs or refusing to sell, rent, or lease housing on different terms. Threatening to call ICE, using the term “illegal alien”, retaliating for making complaints or organizing, or otherwise intimidating tenants because of their immigration or citizenship status or national origin is illegal and constitutes harassment. If you believe you have been discriminated against because of your immigration or citizenship status

or national origin, or membership in another protected class, please contact the NYC Commission on Human Rights (CCHR) at (212) 416-0127 to report discrimination. For more information see our flyer on this topic (translated into 10 other languages) below. For more information on your rights when dealing with ICE, see the following guide from the Mayor's Office of Immigrant Affairs (MOIA): Know Your Rights: Federal Immigration Enforcement (ICE) - MOIA.

Watch: How to Identify an HPD Inspector.

For more information, see our Immigrant Rights in Housing Flyer

- Arabic / العربية
- Bengali / বাংলা
- Chinese (Simplified) /
- French / français
- Haitian-Creole / Kreyòl ayisyen
- Korean / 한국어
- Polish / polski
- Russian / Русский язык
- Spanish / Español
- Urdu / اردو

## Tenants' Rights FAQs

Expand All

Collapse All

Click a topic, or press the enter key on a topic, to reveal its answer.

**What are my responsibilities as a tenant?**

**What are the responsibilities of my landlord?**

**My landlord refuses to make repairs to my apartment. What can I do?**

**I have no heat or hot water in my apartment. What can I do?**

**There is peeling paint in my apartment and I have a child under 6. How can I find out if there is lead-based paint and what is my landlord supposed to do?**

**Can I request window guards from my landlord?**

**Am I entitled to have my apartment painted?**

**What are the rules about living in basements and cellars?**

**Can my landlord enter my apartment at any time?**

**My landlord has changed the locks on my apartment. Is the landlord allowed to change my locks?**

**My Landlord raised my rent. I think it is too high. What can I do?**

**Am I supposed to get my security deposit back?**

**What should I do if my building owner is harassing me?**

**Can a building owner discriminate against me?**

**Can I have pets in my apartment?**

Note: The content on this web site is intended for informational purposes only and is not intended to be legal advice or opinion. The content of this web site may not reflect current legal developments. Since the law is constantly changing and since the law will vary based on different facts and circumstances, statements on this web site regarding the status of a given law or legal issue may not be current or applicable to your particular situation.